

9:00 AM

Line 7

25-CIV-10162 MANISH RAI JAIN VS. FORD MOTOR COMPANY

MANISH RAI JAIN
FORD MOTOR COMPANY

ASHLEY J. YADDGO
TRINA M. CLAYTON

Defendant's Motion for Entry of Protective Order

TENTATIVE RULING:

This is a Lemon Law case. Defendant Ford Motor Company has moved for a protective order limiting how and to whom sensitive commercial information that Ford is required by statute to provide may be disclosed. Specifically, Ford seeks for the information to be protected under Superior Court of Los Angeles County's ("LASC") Model Protective Order, with certain modifications.

Defendant's Motion for a Protective Order is GRANTED.

LEGAL STANDARD

California Code of Civil Procedure § 2031.060, subd. (b), provides that a court may enter a protective order under any of the following conditions:

The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions:

- (1) That all or some of the items or categories of items in the demand need not be produced or made available at all.
- (2) That the time specified in Section 2030.260 to respond to the set of demands, or to a particular item or category in the set, be extended.
- (3) That the place of production be other than that specified in the demand.
- (4) That the inspection, copying, testing, or sampling be made only on specified terms and conditions.
- (5) ***That a trade secret or other confidential research, development, or commercial information not be disclosed, or be disclosed only to specified persons or only in a specified way.***
- (6) That the items produced be sealed and thereafter opened only on order of the court.

(Code Civ. Proc., § 2031.060, subd. (b) [emphasis added].)

Separately, for Lemon Law cases, the California Legislature has expedited the discovery process such that auto manufacturers are required to produce certain types of documents early in litigation, without a discovery request from the plaintiff:

The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b): ...(12) Warranty policies and procedure manuals; (15) If a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims.

(Code Civ. Proc., § 871.26, subds. (h)(12) and (15).)

LEGAL ANALYSIS

1. Defendant May Seek a Protective Order Under Section 2031.060(b)

Plaintiff argues that Defendant cannot move for a protective order under Section 2031.060(b) because a demand for discovery is the trigger for such a motion, and no such demand has been made here. However, in the Court's view, Section § 871.26 effectively expedites the discovery process by requiring the parties to exchange certain documents within 60 days after the Answer is filed. The statute is conspicuously silent as to any limitations on the Court's ability to issue protective orders to protect confidential information disclosed by auto manufacturers. The Court agrees with Commissioner Elliott's conclusion in his informal advisory opinion on this matter, that the discovery framework contemplated in CCP § 871.26 does not strip a party of the ability to obtain a protective order:

Section 871.26 is clearly a discovery framework. To apply it in isolation apart from the Discovery Act would permit unintended consequences, such as those at issue here. A defendant would never opt into the Section 871.20, et seq., framework if it meant they lost the ability to protect trade secrets or other highly sensitive information. And with no invocation of the framework, the legislation would be rendered meaningless. That the framework does not specifically mention "protective order" is not persuasive.

(IDC Minute Order, June 24, 2026.)

The Legislative history of AB 1755 supports Section 871.26, in relevant part here, is a discovery framework: "[F]or cases that do reach the civil justice system, this bill adopts a set of **streamlined discovery processes** to ensure that the information most relevant to a lemon law case is disclosed early in the litigation process and without the need to argue costly discovery disputes before the court." (California Bill Analysis, A.B. 1755 Assem., 8/30/2024 [emphasis added].)

The statute and legislative history are silent as to protective orders – including where the legislative history addresses specific types of discovery disputes the bill seeks to alleviate:

The expedited discovery provisions of this measure will reduce protracted discovery disputes. Discovery disputes, most notably arguments over what must be turned over to opposing parties in litigation, is one of the largest drivers in delays in almost every type of civil litigation. Lemon law litigation is no different. Presently, parties squabble over what maintenance records are to be disclosed, what warranty documents must be disclosed, and how depositions can be conducted. Every time one of these disputes arises, the court is forced to calendar a motion hearing and delay a potential trial. Given that lemon law cases are typically very document-heavy matters and involve a limited universe of documents, many of these discovery disputes represent little more than unnecessary litigation tactics that only serve to delay justice.

Recognizing that litigating futile discovery motions can significantly prolong relatively simple lemon law cases, this bill seeks to streamline discovery in lemon law actions. The bill mandates that specified documents--those most associated with lemon law claims including maintenance records and warranties-- be disclosed to the opposing party within 60 days of a defendant answering or otherwise responding to a complaint. Additionally, a scope-limited deposition must be taken of the plaintiff and representative of the defendant within 120 days of the defendants response to the complaint. Finally, seeking early out-of-court resolution, the bill mandates mediation take place within the first 150 days of the action.

As noted, the bill specifies a range of lemon law related documents that must be disclosed. While some opponents contend that this bill forces parties to take on an unnecessary burden of producing documents quickly, in reality, the bill calls for the timely disclosure of documents all parties should readily have in their possession and would certainly have to disclose after a protracted discovery dispute. Accordingly, this bill is focused on expediting discovery, reducing needless discovery disputes, and promoting mediation to resolve claims in a timely manner without overburdening either party to the case.

(California Bill Analysis, A.B. 1755 Assem., 8/30/2024 [*italics in original*].)

Thus, the legislative history reveals only that the Legislature was concerned with discovery disputes over which maintenance records and warranty documents are to be disclosed and, therefore, mandated that such documents be disclosed. Nothing in Section 871.26 (or AB 1755) addresses confidentiality of information within documents subject to disclosure or purports to eliminate the ability of the court to limit the use of confidential discovery through a protective order by means of the Civil Discovery Act procedure. Legislative silence on an issue is weak evidence of legislative intent. (*See U.S. v. Wells* (1997) 519 U.S. 482, 496 [“[W]e have frequently cautioned that [i]t is at best treacherous to find in congressional silence alone the adoption of a controlling rule of law” (internal citations and quotations omitted)]; *Brown v. Gardner* (1994) 513 U.S. 115, 121 [“congressional silence lacks persuasive significance” (internal citations and quotations omitted)].)

The Court cannot take the extraordinary position that the Legislature – through its silence on the issue of a protective orders in Section 871.26 and its legislative history – intended to preclude

parties from seeking (and courts from ordering) protective orders directed at limiting how and to whom sensitive commercial information produced in accordance with Section 871.26 may be disclosed.

2. Defendant Has Shown Good Cause for the Protective Order Requested

Protective orders are appropriate to prevent dissemination of a party's "commercial information." (Code Civ. Proc. § 2031.060, subd. (b)(5).) The California Supreme Court has confirmed that "the burden is on the party seeking the protective order to show good cause **for whatever order is sought**." (*Fairmont Ins. Co. v. Superior Ct.*, 22 Cal.4th 245, 255 [emphasis added].) Thus, Defendant bears the burden of presenting facts supporting that the documents it seeks to protect are confidential. (*Nativi v. Deutsche Bank Nat. Trust Co.* (2014) 223 Cal.App.4th 261, 315, 318–319 [no factual showing for "sweeping protective order" where declaration merely stated "[Defendant] is severely prejudiced if these documents are not provided any protection at all" – with no factual basis or articulated reasoning provided].)

Plaintiff argues that Defendant's supporting declaration is conclusory and "fails to identify a single trade secret, define any protected information, or provide evidence warranting confidentiality." (Oppo., at p. 6:16-18.) The Court disagrees with that broad characterization. Defendant has provided facts demonstrating good cause for a standard protective order directed at limiting how and to whom sensitive commercial information produced in accordance with Section 871.26 may be disclosed.

For example, on Customer Relationship Center Policies and Procedures, Defendant states:

[The Customer Relationship Center Policies and Procedures] are proprietary to Ford because they reveal Ford's processes and methodologies to identify, document, assess, and resolve customer or product concerns. In this regard, the documents address the specifics of how customer calls and contacts should be handled for a myriad of reasons, including inquiries regarding general information, vehicle concerns, parts, roadside assistance, owner communications, and others, and sets forth the process that the Customer Relationship Center may follow to process, document, diagnose, handle, and resolve those customer concerns. Furthermore, the documents address the role and responsibility within the Customer Relationship Center, and reveal Ford's process to address, record, resolve, and where necessary, elevate customer concerns using Ford's established processes, including the process through which customer concerns are processed, documented, diagnosed, handled, and resolved by Ford. How Ford classifies customer concerns, and how it determines when and whether to elevate a concern, repurchase a vehicle, or otherwise communicate with its customers, is proprietary to Ford (or its suppliers or vendors). Such information was developed by Ford (or its suppliers or vendors) over time and after considerable investment in its staff and its third-party vendors who operate Ford's call center. Disclosure of these documents would benefit a Ford competitor training its own employees on customer communications or in developing its own process for such communications without the need to expend the same time and investment in creating these processes as incurred by Ford.

(Pannell Decl., 9. 10.)

The declaration provides specific factual details about the confidential nature of its Customer Relationship Center policies and procedures, explains why it is proprietary (e.g. reveals Ford's processes, methodologies, and classification systems developed over time with investment), and articulates the competitive harm in that it would benefit competitors in training employees and developing their own processes without the investment. and the potential competitive harm from disclosure.

Plaintiff's declaration is similarly sufficient with regard to Ford's Warranty Policy and Procedure Manual and Ford's Reacquired Vehicle ("RAV") Policy and Procedure Manuals. (*See* Pannell Decl., ¶¶ 11-12.)

Plaintiff argues that Defendant has not provided sufficient facts to establish a "trade secret" under the California's Uniform Trade Secrets Act, codified at Civil Code section 3426.1. However, a court's discretion to issue a protective order regarding sensitive commercial information is not limited to trade secrets as defined in the Civil Code. Rather, courts have broader discretion to issue protective order directing "[t]hat a trade secret ***or other confidential research, development, or commercial information*** . . . be disclosed only to specified persons or only in a specified way." (Code Civ. Proc., § 2031.060, subd. (b)(5) [emphasis added].) Here, Defendant's declaration sufficiently describes commercial information warranting a protective order directing how and to whom that information may be disclosed – without allowing Defendant to withhold any such information from Plaintiff.

Plaintiff argues that public interest outweighs Defendant's confidentiality claims because a protective order would serve as a roadblock to consumers obtaining relief under the Song-Beverly Act. (Oppo., at p. 8:7-9.) The Court finds this argument unconvincing. Defendant is not seeking to withhold any relevant information or preclude its use in this litigation. Rather, Defendant modestly seeks for the dissemination of confidential commercial information to be governed by a standard protective order directing how and to whom the information may be disclosed.

3. Defendant's Proposed Protective Order Is Reasonable

Defendant argues that the proposed protective order – which is LASC Model Protective Order, with relatively minor modifications made by Defendant (see Hollenback Decl., Ex. C.) – is reasonable. While Plaintiff has opposed the issuance of a protective order, Plaintiff has not opposed the Defendant's proposed protective order on its terms. Further, Defendant has established that Plaintiff has continually ignored communications by Defendant to discuss the terms of a protective order in this case, including the terms of the proposed protective order here, dating back to February 9, 2026 (when Defendant filed and served its Answer) and continuing through July 29, 2026. (Hollenback Decl., ¶¶ 4-8; Hollenback Reply Decl., ¶¶ 5-6.)

The Court accepts Defendant's proposed Protective Order as reasonable.

Accordingly, Defendant's Motion for a Protective Order is GRANTED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 8

CLJ448859

WORLDWIDE ASSET, ET AL VS NANCY D BROWN

WORLDWIDE ASSET PURCHASING, LLC
NANCY D BROWN

RORY W. CLARK

Assignee River Heights Capital, LLC's Claim of Exemption (Wage Garnishment – Enforcement of Judgment)

TENTATIVE RULING:

No tentative ruling, parties are to appear on this exemption hearing. Zoom is authorized; Courtroom L zoom credentials for Dept. 20.
